

ELECTION COMMISSION - ASCII MASTER - 1/12

+-----+ PANEL 01/12 - CONCEPT AND CONSTITUTIONAL FIELD +-----+	
- Article 324: ECI controls rolls and elections to Parliament, State legislatures, President and Vice-President. - Articles 325-329: general roll, adult suffrage, legislative powers and election-petition channel. - Articles 103/192: President/Governor decides specified disqualification after obtaining ECI opinion. - Articles 243K/243ZA: State Election Commission, not ECI, controls Panchayat and municipal polls. - Answer line: independent supervision is broad but remains bounded by Constitution, statute and review. 	
+-----+	

ELECTION COMMISSION - ASCII MASTER - 2/12

```
+-----+
| PANEL 02/12 - COMPOSITION, HISTORY AND COLLEGIALITY |
+-----+
| - CEC + such number of other ECs as President fixes, subject to parliamentary law. |
| - 1950 single member -> Oct 1989 multi -> Jan 1990 single -> Oct 1993 continuing three-member |
|   body. |
| - CEC is Chairman; unanimity is preferred and differences are decided by majority. |
| - T.N. Seshan (1995): multi-member Commission and equal decisional status are valid. |
| - Regional Commissioner: President appoints after consulting ECI; assistance office, not SEC. |
+-----+
```

ELECTION COMMISSION - ASCII MASTER - 3/12

+-----+ PANEL 03/12 - CURRENT APPOINTMENT LAW +-----+	
- Anoop Baranwal (2023): PM + Opposition leader + CJI only until Parliament enacted a law. - Act 49 of 2023 commenced 2 Jan 2024 and repealed the 1991 Act. - Search: Law Minister + two Secretary-rank members -> panel of five. - Select: PM + LoP/largest opposition leader + PM-nominated Union Cabinet Minister. - President appoints by warrant; section 8 permits consideration beyond the search panel. - 7 Sep 2026: Act operative; 22 Mar 2024 interim refusal; no located final merits ruling or stay. +-----+	

ELECTION COMMISSION - ASCII MASTER - 4/12

+-----+	
	PANEL 04/12 - TERM, SERVICE CONDITIONS AND REMOVAL
+-----+	
	- Eligibility: Secretary-equivalent rank + integrity + election-management knowledge/experience.
	- Term: six years or age 65, whichever earlier; no reappointment; aggregate six-year cap.
	- Enacted section 10: salary equal to a Supreme Court judge.
	- CEC removal: same manner and grounds as Supreme Court judge.
	- Other EC/Regional Commissioner: President only on CEC recommendation.
	- Article 324 protects CEC service conditions from disadvantageous variation after appointment.
+-----+	

ELECTION COMMISSION - ASCII MASTER - 5/12

PANEL 05/12 - SECRETARIAT, STAFF AND ELECTION TIMETABLE

- Article 324(6): President/Governor supplies staff when ECI requests it.
- Constitution does not create a separate election cadre or blanket charged-expenditure clause.
- Schedule announcement -> notification -> nomination -> scrutiny -> withdrawal -> poll -> count -> result.
- Section 151A: by-election ordinarily within six months, subject to exact exceptions.
- Sections 57/58/58A: adjournment, fresh poll and booth-capturing remedies use distinct triggers.

ELECTION COMMISSION - ASCII MASTER - 6/12

+-----+	
	PANEL 06/12 - RPA 1950, ROLLS AND DELIMITATION
+-----+	
	- RPA 1950: allocation/constituency framework plus electoral-roll infrastructure.
	- Section 19: age and ordinary residence; sections 21-23: revision, correction/deletion and inclusion.
	- Four qualifying dates: 1 Jan 1 Apr 1 Jul 1 Oct.
	- Roll integrity = include every eligible citizen + delete only through notice and lawful process.
	- 2026 INSC 564: limited electoral citizenship inquiry, not final citizenship adjudication.
	- Delimitation Commission is a distinct statutory body; ECI participates only as law provides.
+-----+	

ELECTION COMMISSION - ASCII MASTER - 7/12

+-----+	
	PANEL 07/12 - RPA 1951: CONDUCT, DISQUALIFICATION AND DISPUTES
+-----+	
	- RPA 1951: nominations, polling, expenses, parties, corrupt practices, disqualification and petitions.
	- Sections 8-10A supply principal statutory disqualification grounds.
	- Lily Thomas (2013): section 8(4) sitting-member shield invalid.
	- Section 123 defines corrupt practices; Abhiram Singh (2017) controls identity/religious appeals.
	- High Court tries election petitions under sections 80/80A; section 116A appeal lies to Supreme Court.
+-----+	

ELECTION COMMISSION - ASCII MASTER - 8/12

+-----+	
	PANEL 08/12 - CANDIDATES, CRIMINALISATION, MONEY AND MEDIA
+-----+	
	- ADR (2002) and PUCL (2003): voter right to material candidate information.
	- Public Interest Foundation (2018/2020): antecedent publicity and party reasons for selection.
	- Candidate expense account/ceiling is distinct from total political-party campaign spending.
	- Paid news: evidence -> monitoring -> expense attribution or applicable legal route.
	- Social media/deepfakes: ad transparency + MCC + applicable election/criminal/technology law.
	- ECI cannot invent new offences, convictions or disqualification grounds.
+-----+	

ELECTION COMMISSION - ASCII MASTER - 9/12

+-----+	
	PANEL 09/12 - PARTIES, SYMBOLS AND MODEL CODE
+-----+	
	- RPA 1951 section 29A registration != recognition != reserved symbol.
	- Institute of Social Welfare (2002): ECI has no general deregistration power; narrow exceptions.
	- Symbols Order 1968 paragraph 15 decides recognised-party rival-group claims.
	- Kanhiya Lal Omar (1985): Symbols Order is legally valid.
	- MCC: non-statutory code from schedule announcement to completion.
	- MCC conduct may independently violate RPA, BNS or another statute.
+-----+	

ELECTION COMMISSION - ASCII MASTER - 10/12

```
+-----+
| PANEL 10/12 - EVM-VVPAT AND AUDIT |
+-----+
| - Ballot Unit -> Control Unit -> VVPAT display and sealed paper slip -> counting protocol. |
| - Rule 49MA: alleged mismatch procedure; Rule 56D: application for paper-slip count. |
| - Subramanian Swamy (2013): VVPAT paper trail supports voter confidence. |
| - ADR v ECI (26 Apr 2024): no paper-ballot return or universal count; limited safeguards |
|   added. |
| - 7 May 2025 order: diagnostic certification, preservation and candidate-requested protocol. |
| - Technology answer = architecture + custody + audit + complaint remedy. |
+-----+
```

ELECTION COMMISSION - ASCII MASTER - 11/12

+-----+ PANEL 11/12 - ARTICLE 324 CASE CODE AND COURT BOUNDARY +-----+	
- Mohinder Singh Gill (1978): Article 324 is a reservoir where law is silent; recorded reasons matter. - A.C. Jose (1984): ECI supplements, never supplants, enacted law and rules. - Ponnuswami (1952): do not derail an election midway; petition is the ordinary challenge. - Ashok Kumar (2000): limited review may facilitate, but not obstruct, the process. - President/Vice-President disputes go to Supreme Court under Article 71, not High Court petition. +-----+	

ELECTION COMMISSION - ASCII MASTER - 12/12

```
+-----+
| PANEL 12/12 - TRAPS, REFORM AND ANSWER SPINE |
+-----+
| - Traps: ECI != SEC | CEC vote != superior | six-year term is statutory | registration != |
| recognition. |
| - Reform: independent search, reasoned selection, stable secretariat and predictable finance. |
| - Clean rolls, transparent political finance, public MCC reasons and audited digital |
| campaigning. |
| - Time-bound election courts and evidence-based EVM-VVPAT communication. |
| - Answer spine: define -> exact source/actor -> claim -> named evidence -> analysis -> |
| qualification. |
| - Verdict: electoral trust requires administration that is lawful, observable and correctable. |
+-----+
```